

ZBA2026-063 — VERSION COMPARISON & IMPACT SUMMARY

Original Submission (June 22, 2026) vs. Current Record (Sept. 10, 2026 Agenda)

1. THE AGENDA'S VARIANCE LIST DISCREPANCY — RESOLVED

Confirmed directly with Planning & Community Development. The head of planning confirmed by phone that the file now posted on the City's website is the current, controlling version, that it does address the changes behind the reduced variance count, and that the three dropped sections — dumpster location, parking-drive landscaping, and fence height — are resolved and will **not** be addressed at the September 10 hearing. He described the changes as “subtle,” which is consistent with why the packet's own zoning review pages (unchanged since the original submission) still show those three items as non-compliant — that page was never reissued after the revision.

The original packet (and the Aug. 13 hearing notice) cited nine ordinance sections. The six now confirmed as live for the September 10 hearing:

Confirmed live (6)	Resolved, not pursued (3)
4.3-A.1.C — Multifamily Dwellings (use)	5.6.5.D — Dumpster Location
8.1.2 — Planned Development Lot Area	8.1.4 — Townhouse Parking Drive Landscaping
5.3.1.E — Townhouse Building Type	8.2.4-A — Fence Height
5.3.1.E.5.B — Max. Height in Stories	
5.3.1.E.5.C — Max. Height in Feet	
8.7.2.F.2 — Parking Location	

All five documents (handout, criteria sheet, testimony, board memo, field reference) have been updated to reflect six variances and the September 10 hearing date.

2. WHAT ACTUALLY CHANGED IN THE PACKET ITSELF (VERIFIED BY CHECKSUM)

Every one of the 17 pages in both packets was compared byte-for-byte. Only 2 pages differ:

- Page 13 (Conceptual Site Plan) and Page 14 (Zoning Exhibit) — both carry a new revision block: “REV 1, 8/31/26, REV PER STAFF COMMENT, by REK.”
- The only visible change: the surface parking layout shifted by one stall. The 5-unit building's lot went from 5 spaces to 4; the 8-unit building's lot went from 15 to 16. Total surface count is unchanged at 20.
- All 15 other pages — denial letter, all 5 zoning review pages, the assessment card, the GIS map, the Variance Criteria form, both pages of the Dubai Group memo, the By-Right Subdivision Plan, and both elevation sheets — are byte-for-byte identical to the original.

Impact: minor, on its own. This revision does not change unit count, building height, lot area, or (per the packet itself) any of the nine originally-cited variance sections. It's a technical correction, not a substantive redesign — the open question in Section 2 above is a separate, agenda-level issue, not something caused by this packet revision.

3. FIXES APPLIED ACROSS ALL FIVE DOCUMENTS

Item	Status
Hearing date	Updated from August 13 to September 10, 2026 in all five documents.
Six variances	Confirmed with PCD and applied — the handout's stat box, the criteria sheet, the testimony's “Second” point, and the board memo's Criterion 2 section all now read six, with the nine-to-six history noted where relevant.
Dumpster / fence / landscaping bullets	Removed from the handout, criteria sheet, testimony, and board memo — confirmed resolved and not being pursued.